CHAPTER 64 Central Vigilance Commission

Establishment

The Central Vigilance Commission (CVC) is the main agency for preventing corruption in the Central government. It was established in 1964 by an executive resolution of the Central government. Its establishment was recommended by the Santhanam Committee on Prevention of Corruption[1] (1962–64).

Thus, originally the CVC was neither a constitutional body nor a statutory body. Later, it was conferred statutory status by the Central Vigilance Commission Act, 2003 (CVC Act, 2003).

The CVC has been designated as the agency to receive and act on complaints or disclosure on any allegation of corruption or misuse of office from whistle blowers under the "Public Interest Disclosure and Protection of Informers' Resolution" (PIDPI), 2004, which is popularly known as "Whistle Blowers" Resolution. The CVC is also empowered as the only designated agency to take action against complainants making motivated or vexatious complaints.[2]

The CVC is conceived to be the apex vigilance institution, free of control from any executive authority, monitoring all vigilance activity under the Central Government and advising various authorities in Central Government organisations in planning, executing, reviewing and reforming their vigilance work.

Composition

The CVC is a multi-member body consisting of a Central Vigilance Commissioner (chairperson) and not more than two vigilance commissioners. They are appointed by the President by warrant under his/her hand and seal on the recommendation of a three-member committee consisting of the prime minister as its head, the Union minister of home affairs and the Leader of the Opposition[2a] in the Lok Sabha. They hold office for a term of four years or until they attain the age of sixty five years, whichever is earlier. After their tenure, they are not eligible for further employment under the Central or a state government.

The President can remove the Central Vigilance Commissioner or any vigilance commissioner from the office under the following circumstances:

1. If he/she is adjudged an insolvent; or
2. If he/she has been convicted of an offence which (in the opinion of the Central government) involves a moral turpitude; or
3. If he/she engages, during his/her term of office, in any paid employment outside the duties of his/her office; or
4. If he/she is (in the opinion of the President), unfit to continue in office by reason of infirmity of mind or body; or
5. If he/she has acquired such financial or other interest as is likely to affect prejudicially his/her official functions.

In addition to these, the President can also remove the Central Vigilance Commissioner or any vigilance commissioner on the ground of proved misbehaviour or incapacity. However, in these cases, the